

Rajesh Kumar Shukla v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 July 2022 · Writ-C No. 16043 of 2022 · WRIT - C No. - 16043 of 2022
 · **Writ disposed; liberty to object under Para 6.8 with eight-week stay of coercive recovery.**

HEADNOTE

A consumer writ seeking certiorari against a 29 April 2022 demand notice and a 26 March 2019 order, and mandamus against recovery, was disposed of without opinion on merits. On the distribution corporation's statement, the Court granted liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directed disposal in accordance with law within the next four weeks after hearing, and stayed coercive action for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Rajesh Kumar Shukla petitioned the Allahabad High Court to quash a demand notice dated 29 April 2022 issued by respondent no. 5 and an order dated 26 March 2019 of respondent no. 4, and to restrain recovery of the demanded amount. Respondents 3 to 5 are the power distribution corporation. Counsel for the corporation stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand as alternate remedy

HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 5 within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court relegated the consumer to a Para 6.8 objection before the assessing officer, directed time-bound disposal after hearing, and stayed coercive recovery pending that disposal. ¶ 4-5

alternative-remedy-statutory-appeal-6.8 The High Court declined to examine the demand on merits and treated the Para 6.8 objection as the statutory forum for the consumer's challenge. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE DATED 29.4.2022 AND THE ORDER DATED 26.3.2019

The Court expressly declined to opine on merits and left the dispute to a Para 6.8 objection. ¶ 4